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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:21-cv-01748-GPG-MEH

Yeager v. Allstate Fire and Casualty Insurance Company
Assigned to: District Judge Gordon P Gallagher
Referred to: Magistrate Judge Michael E. Hegarty
Case in other court: Denver County District Court, 2020CV33709
Cause: 28:1332 Diversity-Auto Negligence

Date Filed: 06/25/2021
Date Terminated: 07/11/2023
Jury Demand: Both
Nature of Suit: 110 Insurance
Jurisdiction: Diversity

Plaintiff**Jason D Yeager**

represented by **DezaRae D. LaCrue**
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V.

Defendant**Allstate Fire and Casualty Insurance
Company**

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TERMINATED: 08/17/2023

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TERMINATED: 08/17/2023

Date Filed	#	Docket Text
06/25/2021	<u>1</u>	NOTICE OF REMOVAL by Allstate Fire And Casualty Ins Co from Denver District Court, Case Number 2020CV033709. (Filing fee \$ 402, Receipt Number 1082-7932998), filed by Allstate Fire And Casualty Ins Co. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Exhibit A, # <u>3</u> Exhibit B, # <u>4</u> Exhibit C, # <u>5</u> Exhibit D, # <u>6</u> Exhibit E, # <u>7</u> Exhibit F, # <u>8</u> Exhibit G, # <u>9</u> Exhibit H, # <u>10</u> Exhibit I, # <u>11</u> Exhibit J, # <u>12</u> Exhibit K, # <u>13</u> Exhibit L, # <u>14</u> Exhibit M, # <u>15</u> Exhibit N, # <u>16</u> Exhibit O) (Henkel, Kurt) (Entered: 06/25/2021)
06/25/2021	<u>2</u>	NOTICE of Entry of Appearance by Winslow Russell Taylor, III on behalf of Allstate Fire And Casualty Ins CoAttorney Winslow Russell Taylor, III added to party Allstate Fire And Casualty Ins Co(pty:dft) (Taylor, Winslow) (Entered: 06/25/2021)
06/28/2021	<u>3</u>	NOTICE of Entry of Appearance by Joshua Ty Hotchkiss on behalf of Jason D YeagerAttorney Joshua Ty Hotchkiss added to party Jason D Yeager(pty:pla) (Hotchkiss, Joshua) (Entered: 06/28/2021)
06/28/2021	<u>4</u>	COMPLAINT against Allstate Fire and Casualty Insurance Company, filed by Jason D Yeager. (jtorr,) (Entered: 06/28/2021)
06/28/2021	<u>5</u>	AFFIDAVIT of Service of Complaint, CCCS, and Summons upon Allstate Fire and Casualty Insurance Company on 10/10/2020. (jtorr,) (Entered: 06/28/2021)
06/28/2021	<u>6</u>	AFFIDAVIT of Service of Summons and Complaint upon Ding J. Zhong on 12/18/2020. (jtorr,) (Entered: 06/28/2021)
06/28/2021	<u>7</u>	STATE COURT ORDER: Dismissal Without Prejudice As To Defendant Ding J. Zhong by Denver County District Court Judge Ross B Buchanan on 06/14/2021. (jtorr,) (Entered: 06/28/2021)
06/28/2021	<u>8</u>	ANSWER to <u>4</u> Complaint by Allstate Fire and Casualty Insurance Company.(jtorr,) (Entered: 06/28/2021)
06/28/2021	9	Case assigned to Magistrate Judge Michael E. Hegarty. Text Only Entry. (jtorr,) (Entered: 06/28/2021)
06/28/2021	<u>10</u>	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (jtorr,) (Entered: 06/28/2021)

07/06/2021	11	Minute ORDER by Magistrate Judge Michael E. Hegarty on 6 July 2021. Consent Form due by 7/20/2021. Proposed Scheduling Order due 7/20/2021. Scheduling Conference set for 7/27/2021 10:45 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. (cmadr,) (Entered: 07/06/2021)
07/20/2021	12	CONSENT to Jurisdiction of Magistrate Judge by Defendant Allstate Fire and Casualty Insurance Company All parties do not consent.. (Taylor, Winslow) (Entered: 07/20/2021)
07/20/2021	13	Proposed Scheduling Order by Defendant Allstate Fire and Casualty Insurance Company. (Taylor, Winslow) (Entered: 07/20/2021)
07/20/2021	14	Minute ORDER by Magistrate Judge Michael E. Hegarty on 20 July 2021. Pursuant to the form filed by the parties declining consent under D.C. Colo. LCivR 40.1(c) (ECF 12), the Court directs the Clerk of Court to reassign this case under D.C. Colo. LCivR 40.1(a). This Court may continue on the case to hear matters referred by the district judge under 28 U.S.C. § 636(b), Fed. R. Civ. P. 72 and D.C. Colo. LCivR 72.1(c). (cmadr,) (Entered: 07/21/2021)
07/21/2021	15	CASE REASSIGNED pursuant to 14 . All parties do not consent. This case is randomly reassigned to Judge Raymond P. Moore. All future pleadings should be designated as 21-cv-01748-RM. (Text Only Entry) (cmadr,) (Entered: 07/21/2021)
07/22/2021	16	ORDER REFERRING CASE to Magistrate Judge Michael E. Hegarty. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct a pretrial conference and enter a pretrial order, and (5) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions. Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, this court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. By Judge Raymond P. Moore on 7/22/2021. (Text Only Entry) (rmsec) (Entered: 07/22/2021)
07/22/2021	17	MINUTE ORDER: With the assignment of this matter, the parties are advised that throughout this case they are expected to be familiar and comply with not only the Local Rules of this District, but also Judge Raymond P. Moore's Civil Practice Standards, which may be found at: http://www.cod.uscourts.gov/JudicialOfficers/ActiveArticleIIIJudges/HonRaymondPMoore.aspx . SO ORDERED by Judge Raymond P. Moore on 7/22/2021. (Text Only Entry) (rmsec) (Entered: 07/22/2021)
07/27/2021	18	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael E. Hegarty: Scheduling Conference held on 7/27/2021. FTR: A501. (cthom,) (Entered: 07/27/2021)
07/27/2021	19	SCHEDULING ORDER: Discovery due by 3/4/2022. Dispositive Motions due by 4/8/2022. Join Parties due 8/25/2021. Final Pretrial Conference set for 6/6/2022 10:30 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty, by Magistrate Judge Michael E. Hegarty on 7/27/2021. (agarc,) (Entered: 07/28/2021)
12/08/2021	20	First MOTION for Order to <i>Extend Time for Plaintiff to File Expert Disclosures</i> , First MOTION for Extension of Time to <i>File Expert Disclosures</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Proposed Order (PDF Only))(Hotchkiss, Joshua) (Entered: 12/08/2021)
12/08/2021	21	MEMORANDUM regarding 20 First MOTION for Order to <i>Extend Time for Plaintiff to File Expert Disclosures</i> First MOTION for Extension of Time to <i>File Expert Disclosures</i> filed by Jason D Yeager. Motion referred to Magistrate Judge Michael E. Hegarty. By Judge Raymond P. Moore on 12/8/2021. (Text Only Entry) (rmsec) (Entered: 12/08/2021)

12/09/2021	22	Minute ORDER by Magistrate Judge Michael E. Hegarty on 9 December 2021. For good cause shown, Plaintiff's Unopposed Motion for Extension of Time to File Expert Disclosures 20 is granted. Section 9 of the Scheduling Order is modified as follows: Discovery due by 4/4/2022, Dispositive Motions due by 5/9/2022.(cmadr,) (Entered: 12/09/2021)
01/18/2022	23	NOTICE of Change of Address/Contact Information by Winslow Russell Taylor, III (Taylor, Winslow) (Entered: 01/18/2022)
04/01/2022	24	STRICKEN First MOTION for Summary Judgment <i>FILED</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order re Motion Summary Judgment, # 2 Exhibit Exhibit 1 attached to MJS, # 3 Exhibit Exhibit 2 attached to MJS, # 4 Exhibit Exhibit 3 attached to MJS, # 5 Exhibit Exhibit 4 attached to MJS, # 6 Exhibit Exhibit 5 attached to MJS, # 7 Exhibit Exhibit 6 attached to MJS, # 8 Exhibit Exhibit 7 attached to MJS, # 9 Exhibit Exhibit 8 attached to MJS, # 10 Exhibit Exhibit 9 attached to MJS, # 11 Exhibit Exhibit 10 attached to MJS, # 12 Exhibit Exhibit 11 attached to MJS, # 13 Exhibit Exhibit 12 attached to MJS, # 14 Exhibit Exhibit 13 attached to MJS)(Hotchkiss, Joshua) Modified on 4/1/2022 (rmsec,). (Entered: 04/01/2022)
04/01/2022	25	ORDER: This matter is before the Court sua sponte. Plaintiff's Motion for Summary Judgment 24 is hereby STRICKEN for failure to provide a separate statement of undisputed material facts as required by Judge Raymond P. Moore's Civil Practice Standards (Section IV.C.2 and Exhibits 1 & 2). Additionally, for clarification, the material facts set forth in the Motion should be supported by citations to the separate statement, rather than by reference to any particular exhibit or document. Plaintiff may submit a compliant Motion for Summary Judgment by April 8, 2022. Counsel should review the Practice Standards to ensure the Motion is compliant in all respects before refile. SO ORDERED by Judge Raymond P. Moore on 4/1/2022. (Text Only Entry) (rmsec) (Entered: 04/01/2022)
04/06/2022	26	First MOTION for Summary Judgment <i>FILED</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Proposed Order (PDF Only) PLAINTIFF'S MSJ, # 2 Continuation of Main Document STATEMENT OF UNDISPUTED FACTS CHART, # 3 Affidavit AFFIDAVIT OF JOSH HOTCHKISS, # 4 Exhibit SCHED ORDER, # 5 Exhibit COMPLAINT, # 6 Exhibit ANSWER, # 7 Exhibit UM SELECTION FORM, # 8 Exhibit DR WEINSTEIN OCT 2020 REPORT, # 9 Exhibit DR WEINSTEIN MAY 2021 REPORT, # 10 Exhibit DR PRUSMACK REPORT, # 11 Exhibit DEPO SANCHEZ, # 12 Exhibit ALLSTATE DISCL DOC, # 13 Exhibit COUNSEL LETTER TO ALLSTATE, # 14 Exhibit DEFENDANT COUNSEL EMAILS, # 15 Exhibit DEPO WEINSTEIN, # 16 Exhibit DEPO JOHNSON)(Hotchkiss, Joshua) (Entered: 04/06/2022)
04/21/2022	27	Unopposed MOTION for Extension of Time to File Response/Reply as to 26 First MOTION for Summary Judgment <i>FILED</i> by Defendant Allstate Fire and Casualty Insurance Company. (Taylor, Winslow) (Entered: 04/21/2022)
04/22/2022	28	ORDER granting Defendant's Unopposed Motion for Extension of Time to Respond to Plaintiff's Motion for Summary Judgment 27 . Defendant shall have up to and including May 9, 2022, in which to file a response. SO ORDERED by Judge Raymond P. Moore on 4/22/2022. (Text Only Entry)(rmsec) (Entered: 04/22/2022)
05/09/2022	29	Minute ORDER by Magistrate Judge Michael E. Hegarty on 9 May 2022. This matter comes before the Court sua sponte. Due to a conflict in the Court's calendar, the Final Pretrial Conference currently set for June 6, 2022 is rescheduled to June 10, 2022 at 1:15 p.m. in Courtroom A501 on the fifth floor of the Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado. (cmadr,) (Entered: 05/09/2022)
05/09/2022	30	MOTION for Summary Judgment by Defendant Allstate Fire and Casualty Insurance Company. (Taylor, Winslow) (Entered: 05/09/2022)
05/09/2022	31	STATEMENT of <i>Undisputed Material Facts</i> by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit A - Traffic Accident Report, # 2 Exhibit B - Estimate of Record, # 3 Exhibit C - Liberty Denial Letter, # 4 Exhibit D - Policy Declarations, # 5 Exhibit E - Claim Notes, # 6 Exhibit F - List of Treating Providers, # 7 Exhibit G - April 2020 Demand, # 8

		Exhibit H - 6/9/2020 Letter, # 9 Exhibit I - 7/28/2020 Letter, # 10 Exhibit J - Sanchez Affidavit, # 11 Exhibit K - 9/17/2020 Demand, # 12 Exhibit L - 9/17/2020 Letter re Necessity of Treatment, # 13 Exhibit M - 9/24/2020 Letter, # 14 Exhibit N - 10/10/2020 Letter, # 15 Exhibit O - Complaint, # 16 Exhibit P - Discovery Responses, # 17 Exhibit Q - 5/20/2021 Email, # 18 Exhibit R - 5/26/2021 Email, # 19 Exhibit S - Plaintiff's Disclosures, # 20 Exhibit T - Johnson Report, # 21 Exhibit U - Weinstein Report, # 22 Exhibit V - Johnson Transcript)(Taylor, Winslow) (Entered: 05/09/2022)
05/09/2022	32	RESPONSE to 26 First MOTION for Summary Judgment <i>FILED</i> filed by Defendant Allstate Fire and Casualty Insurance Company. (Taylor, Winslow) (Entered: 05/09/2022)
05/09/2022	33	STATEMENT re 32 Response to Motion <i>Opposing Partys Response and Additional Facts and Supporting Evidence</i> by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit A - 4/14/2020 Demand, # 2 Exhibit B - 1/22/2020 Record from Rocky Mountain Spine, # 3 Exhibit C - Sanchez Affidavit, # 4 Exhibit D - Sanchez Transcript, # 5 Exhibit E - Claim Notes, # 6 Exhibit F - Weinstein Transcript, # 7 Exhibit G - Johnson Transcript, # 8 Exhibit H - Discovery Responses, # 9 Exhibit I - Complaint, # 10 Exhibit J - Plaintiff's Disclosures, # 11 Exhibit K - Johnson Report)(Taylor, Winslow) (Entered: 05/09/2022)
05/13/2022	34	NOTICE of Entry of Appearance <i>filed</i> by Joshua Ty Hotchkiss on behalf of Jason D Yeager (Hotchkiss, Joshua) (Entered: 05/13/2022)
05/16/2022	35	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re 34 Notice of Entry of Appearance filed by attorney Dezae LaCrue. The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (sdunb,) (Entered: 05/16/2022)
05/18/2022	36	First MOTION to Strike <i>Raul Sanchez Affidavit</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Exhibit 1. Excerpts of Deposition of Raul Sanchez at 85:3-12, # 2 Exhibit 2. Letter from Counsel, # 3 Exhibit 3. Excerpt from Allstate Claims file Bates No. 1111)(Hotchkiss, Joshua) (Entered: 05/18/2022)
05/20/2022	37	STATEMENT re <i>Reply to Opposing Party's Response and Additional Facts and Supporting Evidence</i> by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/20/2022)
05/20/2022	38	REPLY to Response to 26 First MOTION for Summary Judgment <i>FILED</i> filed by Plaintiff Jason D Yeager. (Attachments: # 1 1, Sanchez Depo 23 19-25 and 24 1)(Hotchkiss, Joshua) (Entered: 05/20/2022)
05/27/2022	39	RESPONSE to 30 MOTION for Summary Judgment <i>by Defendant Allstate Fire and Casualty Insurance Company</i> filed by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/27/2022)
05/27/2022	40	STATEMENT <i>Response to Defendant's Statement of Undisputed Facts and Additional Facts and Supporting Evidence ("OSUMF")</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Exhibit EXH 1 Prusmack Medical Record, # 2 Exhibit EXH 2 Sanchez Deposition)(Hotchkiss, Joshua) (Entered: 05/27/2022)
06/08/2022	41	Proposed Pretrial Order by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit B (Defendant's Draft Witness List), # 2 Exhibit D (Defendant's Draft Exhibit List))(Taylor, Winslow) (Entered: 06/08/2022)
06/08/2022	42	RESPONSE to 36 First MOTION to Strike <i>Raul Sanchez Affidavit</i> filed by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit A - Sanchez Affidavit, # 2 Exhibit B - Sanchez Deposition, # 3 Exhibit C - Claim Diary Entries, # 4 Exhibit D - Letter dated 10/10/2020, # 5 Exhibit E - Discovery Responses)(Taylor, Winslow) (Entered: 06/08/2022)
06/09/2022	43	Exhibit List <i>filed</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Exhibit Plaintiff's F.R.C.P. Witness List)(Hotchkiss, Joshua) (Entered: 06/09/2022)

06/10/2022	44	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael E. Hegarty: Final Pretrial Conference held on 6/10/2022. FTR: A501. (cthom,) (Entered: 06/10/2022)
06/10/2022	45	FINAL PRETRIAL ORDER by Magistrate Judge Michael E. Hegarty on 10 June 2022. (cmadr,) (Entered: 06/10/2022)
06/10/2022	46	REPLY to Response to 30 MOTION for Summary Judgment filed by Defendant Allstate Fire and Casualty Insurance Company. (Taylor, Winslow) (Entered: 06/10/2022)
06/10/2022	47	REPLY to 31 Statement,,, <i>Reply Statement of Undisputed Material Facts and Supporting Evidence</i> by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit W - Sanchez Transcript)(Taylor, Winslow) (Entered: 06/10/2022)
06/13/2022	48	MINUTE ORDER: In light of the Final Pretrial Order entered by Magistrate Judge Michael E. Hegarty 45 , the parties are directed to jointly contact the Court's Judicial Assistant via email (Deanne_bader@cod.uscourts.gov) on or before 5:00 pm on Tuesday, June 14, 2022, to obtain trial dates. SO ORDERED by Judge Raymond P. Moore on 6/13/2022. (Text Only Entry) (rmsec) (Entered: 06/13/2022)
06/16/2022	49	ORDER SETTING CASE FOR TRIAL. This matter has been scheduled for a five-day jury trial on the docket of Judge Raymond P. Moore in the U.S. District Court, Courtroom A601, 6th Floor, 901 19th Street, Denver, Colorado to commence on June 26, 2023 at 9:00 a.m. On the first day of trial to a jury, counsel are expected to be present at 8:30 a.m. to go over any final matters before the commencement of trial. A Trial Preparation Conference is set for June 2, 2023 at 10:00 a.m. By Judge Raymond P. Moore on 06/16/2022. (sdunb,) (Entered: 06/16/2022)
06/20/2022	50	REPLY to Response to 36 First MOTION to Strike <i>Raul Sanchez Affidavit</i> filed by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 06/20/2022)
12/02/2022	51	ORDER. Plaintiff's Motion for Summary Judgment 26 , Defendant's Motion for Summary Judgment 30 , and Plaintiff's Motion to Strike 36 are DENIED. By Judge Raymond P. Moore on 12/2/2022.(trvo,) (Entered: 12/02/2022)
04/05/2023	52	REASSIGNMENT OF JUDGE. This action is reassigned to Judge Gordon P. Gallagher upon his appointment as United States District Judge. Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained. Judge Gallagher is located in Courtroom 323 in the Wayne Aspinall Courthouse. His telephone number is (970) 241-8932. All future pleadings should be designated as 21-cv-01748-GPG-MEH. (Text only entry) (agarc,) (Entered: 04/05/2023)
04/07/2023	53	ORDER: In light of the passage of time since entry of the Pretrial Order 45 , the order setting trial for this matter in June 2023 49 , and the court's subsequent denial of dispositive motions 51 , within 7 days of this Order the parties shall file a Status Report indicating whether there are any outstanding issues that affect the parties' ability to proceed to trial as currently scheduled. By District Judge Gordon P. Gallagher on 4/7/23. Text Only Entry (msklc2,) (Entered: 04/07/2023)
04/13/2023	54	Joint STATUS REPORT by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 04/13/2023)
04/24/2023	55	ORDER : Due to a conflict on the Court's calendar, VTC Trial Preparation Conference is hereby re-set for 5/31/2023 at 1:30 PM in Room 323 (Grand Junction) before District Judge Gordon P. Gallagher. The Conference which had been set for 6/2/2023 is hereby VACATED. By District Judge Gordon P. Gallagher on April 24, 2023. Text Only Entry (gpgsec,) (Entered: 04/24/2023)
05/22/2023	56	WITHDRAWN Unopposed MOTION for Leave to Appear <i>at Trial Preparation Conference via Telephone</i> by Plaintiff Jason D Yeager. (LaCrue, DezaRae) Modified on 5/22/2023 to withdraw pursuant to the 59 Minute Order (sdunb,). (Entered: 05/22/2023)
05/22/2023	57	MEMORANDUM regarding 56 Unopposed MOTION for Leave to Appear <i>at Trial Preparation Conference via Telephone</i> filed by Jason D Yeager. Motion referred to Magistrate Judge Michael E. Hegarty, by District Judge Gordon P Gallagher on 5/22/2023. Text Only Entry (sdunb,) (Entered: 05/22/2023)

05/22/2023	58	MOTION to Withdraw Document re 56 Unopposed MOTION for Leave to Appear <i>at Trial Preparation Conference via Telephone</i> by Plaintiff Jason D Yeager. (LaCrue, DezaRae) (Entered: 05/22/2023)
05/22/2023		Motion(s) No Longer Referred: 56 Unopposed MOTION for Leave to Appear <i>at Trial Preparation Conference via Telephone</i> by District Judge Gordon P Gallagher on 5/22/2023. Text Only Entry (sdunb,) (Entered: 05/22/2023)
05/22/2023	59	MINUTE ORDER granting 58 Motion to Withdraw Document 58 MOTION to Withdraw Document re 56 Unopposed MOTION for Leave to Appear <i>at Trial Preparation Conference via Telephone</i> by District Judge Gordon P Gallagher on 5/22/2023. Text Only Entry(sdunb,) (Entered: 05/22/2023)
05/23/2023	60	Proposed Voir Dire by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/23/2023)
05/23/2023	61	Witness List by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/23/2023)
05/23/2023	62	Exhibit List by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/23/2023)
05/23/2023	63	Proposed Voir Dire by Defendant Allstate Fire and Casualty Insurance Company. (Henkel, Kurt) (Entered: 05/23/2023)
05/24/2023	64	Witness List <i>For Defendant Allstate</i> by Defendant Allstate Fire and Casualty Insurance Company. (Henkel, Kurt) (Entered: 05/24/2023)
05/24/2023	65	STRICKEN MOTION in Limine by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit A - Plaintiff's Expert Disclosures, # 2 Exhibit B - Plaintiff's Initial Disclosures, # 3 Exhibit C - Plaintiff's Discovery Responses)(Taylor, Winslow) Modified on 5/25/2023 to stike motion pursuant to the 66 Order (sdunb,). (Entered: 05/24/2023)
05/25/2023	66	ORDER Defendants Motion in Limine (D. 65) is STRICKEN for untimeliness. This case was originally before Judge Moore and on June 16, 2022, was set for trial on June 26, 2023 (D. 49). The case was reassigned on April 5, 2023, upon the undersigned's appointment as a United States District Judge. The parties were aware of this change as the Court ordered a Joint Status Report from the parties on April 7, 2023 (D. 53), which was filed on April 13, 2023 (D. 54). The Court's practice standards (the Uniform Civil Practice Standards and Civil Standing Order) were also available online on April 11, 2023 (the Civil Standing Order had minor edits made on May 17, 2023). The parties have been aware of the change in judges for the last fifty days and had a duty to review the practice standards of the undersigned. Regardless, neither party has complied with Judge Moore's prior order setting the deadline for submission of proposed jury instructions and verdict forms (D. 49). Ultimately, Defendant's motion in limine is untimely. "If motions in limine are filed, they must be filed twenty-one days before the Trial Preparation Conference." GPG Civ. Standing Order III(D). Furthermore, Defendant failed to confer with Plaintiff's counsel before filing the motion. See id. Having reviewed the briefing, the Court finds that most of these arguments are hypothetical (given that Defense counsel failed to confer) and that these issues can be dealt with as objections at trial should they arise. By District Judge Gordon P Gallagher on 5/25/2023. Text Only Entry (gpglc1). (Entered: 05/25/2023)
05/25/2023	67	Witness List <i>With Estimated Time</i> by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 05/25/2023)
05/30/2023	68	MINUTE ORDER. The Court has prepared a proposed set of introductory jury instructions, which are attached to this Minute Order. These instructions will be read to the jury after jury selection, but before opening statements. The Court will address any objections or comments to the proposed introductory jury instructions at the trial preparation conference, by District Judge Gordon P Gallagher on 5/30/2023. (angar,) (Entered: 05/30/2023)
05/31/2023	69	MINUTE ENTRY for proceedings held before District Judge Gordon P Gallagher: Trial Preparation Conference via VTC/Telephone held on 5/31/2023,. Additional Trial Preparation Conference set for 6/16/2023 at 09:00 AM in Room 323 (Grand Junction) before District Judge

		Gordon P Gallagher and is to be held remotely. Court Reporter: Jan Davis. (jdyne) (Entered: 05/31/2023)
06/16/2023	70	MINUTE ENTRY for Trial Preparation Conference proceedings held before District Judge Gordon P Gallagher on 6/16/2023. Court Reporter: Terri Lindblom. (dclem) (Entered: 06/16/2023)
06/21/2023	71	ORDER: Given the re-assignment of this case, the Court clarifies the location of trial is as follows: Five-Day Jury Trial set to begin on 6/26/2023 at 8:00 AM (for the attorneys; 8:30 AM for jurors) to take place in Courtroom C202/Rogers Courthouse before District Judge Gordon P Gallagher. By District Judge Gordon P Gallagher on June 21, 2023. Text Only Entry (gpglc3,) (Entered: 06/21/2023)
06/22/2023	72	MINUTE ORDER: The Court reminds the parties of their obligation under D.C.COLO.LCivR 54.2 and that they must notify the Court in writing before noon on the last business day before trial if their civil action is resolved, otherwise the Court may assess jury costs against the parties or counsel. Should the parties reach a settlement, they must notify Chambers via Gallagher_Chambers@cod.uscourts.gov. By District Judge Gordon P Gallagher on 6/22/2023. Text Only Entry (gpglc1). (Entered: 06/22/2023)
06/22/2023		***Set/Reset Deadlines/Hearings: Jury Trial set for 6/26/2023 08:00 AM in Courtroom C202 before District Judge Gordon P Gallagher. Jury Trial set for 6/27/2023 08:30 AM in Courtroom C202 before District Judge Gordon P Gallagher. Jury Trial set for 6/28/2023 08:30 AM in Courtroom C202 before District Judge Gordon P Gallagher. Jury Trial set for 6/29/2023 08:30 AM in Courtroom C202 before District Judge Gordon P Gallagher. Jury Trial set for 6/30/2023 08:30 AM in Courtroom C202 before District Judge Gordon P Gallagher. Correcting Jury Trial to be set for five days pursuant to the 71 Order. (sdunb,) (Entered: 06/22/2023)
06/26/2023	73	MINUTE ENTRY for Jury Trial Day 1 proceeding held before District Judge Gordon P Gallagher on 6/26/2023. Jury selection, evidence entered and trial continued. Court Reporter: Kevin Carlin. (dclem) (Entered: 06/26/2023)
06/26/2023	74	Jury Strike Sheet- Unredacted- RESTRICTED DOCUMENT - Level 3. (dclem) (Entered: 06/26/2023)
06/26/2023	75	Redacted Jury Strike Sheet. (dclem) (Entered: 06/26/2023)
06/27/2023	76	MINUTE ENTRY for Jury Trial Day Two (2) proceeding held before District Judge Gordon P Gallagher on 6/27/2023. Court Reporter: Kevin Carlin. (dclem) (Entered: 06/28/2023)
06/28/2023	77	MINUTE ENTRY for Jury Trial Day Three (3) proceeding held before District Judge Gordon P Gallagher on 6/28/2023. Court Reporter: Kevin Carlin. (dclem) (Entered: 06/28/2023)
06/29/2023	78	MINUTE ENTRY for Jury Trial Day 4 proceeding held before District Judge Gordon P Gallagher on 6/29/2023. Evidence Closed. JURY VERDICT. Directing counsel shall file their notice regarding briefing schedule on or before July 10, 2023, as specified on the record. Court Reporter: Kevin Carlin. (dclem) (Entered: 06/30/2023)
06/29/2023	79	Exhibit List from Jury Trial held 06/26/2023 thru 06/29/2023. (dclem) (Entered: 06/30/2023)
06/29/2023	80	Stipulation and Order Governing the Custody and Disposition of Trial Exhibits, Depositions, Transcripts and Papers. by District Judge Gordon P Gallagher on 06/29/2023. (dclem) (Entered: 06/30/2023)
06/29/2023	81	Witness List for Jury Trial held 06/26/2023 thru 06/29/2023. (dclem) (Entered: 06/30/2023)
06/29/2023	82	Jury Instructions for Jury Trial held 06/26/2023 thru 06/29/2023. (dclem) (Entered: 06/30/2023)
06/29/2023	83	Jury Note from Jury Trial Held 06/26/2023 thru 06/29/2023 - Unredacted - Level 3 - Viewable by Court Only. (dclem) (Entered: 06/30/2023)
06/29/2023	84	Redacted Jury Note from Jury Trial held 06/26/2023 thru 06/29/2023. (dclem) (Entered: 06/30/2023)

06/29/2023	85	Jury Verdict from trial held 06/26/2023 thru 06/29/2023- Unredacted - Level 3 - Viewable by Court Only. (dclem) (Entered: 06/30/2023)
06/29/2023	86	Redacted JURY VERDICT from trial held 06/26/2023 thru 06/29/2023. (dclem) (Main Document 86 replaced on 6/30/2023) (hguer,). (Entered: 06/30/2023)
07/10/2023	87	NOTICE <i>Regarding Briefing Schedule</i> by Plaintiff Jason D Yeager (Hotchkiss, Joshua) (Entered: 07/10/2023)
07/11/2023	88	JUDGMENT in favor of Jason D Yeager against Allstate Fire and Casualty Insurance Company. Entered by the Clerk on 07/11/2023. (dclem) (Entered: 07/11/2023)
07/11/2023	89	ORDER: Per the parties stipulated notice filed at D. 87 , the Court hereby adopts and Orders following dates for the parties' briefing schedule: Motions pursuant to Fed. R. Civ. P. 50 (b) 28 days after the entry of judgment; Motions pursuant to Fed. R. Civ. P. 59 28 days after the entry of judgment; Motions pursuant to Fed. R. Civ. P. 54(d) 14 days after the Court approves the parties Briefing Schedule because the final judgment must include attorney fees and costs pursuant to C.R.S. § 10-3-1116(1); and Motions pursuant to Rule 4 of the Federal Rules of Appellate Procedure 30 days after entry of the judgment. By District Judge Gordon P Gallagher on July 11, 2023. Text Only Entry (gpglc3,) (Entered: 07/11/2023)
07/25/2023	90	MOTION for Attorney Fees <i>and Non-Taxable Costs</i> by Plaintiff Jason D Yeager. (Attachments: # 1 Exhibit Contingent Fee Agreement, # 2 Exhibit Time Accounting, # 3 Exhibit Affidavit of Josh Hotchkiss, # 4 Exhibit Nontaxable Cost Inv)(Hotchkiss, Joshua) (Entered: 07/25/2023)
07/25/2023	91	MOTION to Amend/Correct/Modify 88 Judgment by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 07/25/2023)
07/25/2023	92	Proposed Bill of Costs by Plaintiff Jason D Yeager. (Attachments: # 1 Continuation of Main Document Itemization of Costs, # 2 Exhibit Service of Process Fees, # 3 Exhibit Court Reporter Fees, # 4 Exhibit Printing Fees, # 5 Exhibit Copy of Papers for Use in Case, # 6 Exhibit Fees of the Clerk 6.1 and 6.2, # 7 Exhibit Deposition Costs, # 8 Exhibit Other Costs, # 9 Exhibit Parking Fees, # 10 Exhibit Affidavit Regarding In-House Costs)(Hotchkiss, Joshua) (Entered: 07/25/2023)
07/28/2023	93	Proposed Bill of Costs <i>Amended</i> by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 07/28/2023)
08/01/2023	94	NOTICE by Clerk re 93 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on September 12, 2023 at 9:00 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse].The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 08/01/2023)
08/14/2023	95	NOTICE of Entry of Appearance by Justin Hans Zouski on behalf of Allstate Fire and Casualty Insurance CompanyAttorney Justin Hans Zouski added to party Allstate Fire and Casualty Insurance Company(pty:dft) (Zouski, Justin) (Entered: 08/14/2023)
08/15/2023	96	Unopposed MOTION for Extension of Time to File Response/Reply as to 90 MOTION for Attorney Fees <i>and Non-Taxable Costs</i> , 91 MOTION to Amend/Correct/Modify 88 Judgment by

		Defendant Allstate Fire and Casualty Insurance Company. (Zouski, Justin) (Entered: 08/15/2023)
08/16/2023	97	ORDER granting 96 Unopposed MOTION for Extension of Time to File Response/Reply as to 90 MOTION for Attorney Fees and Non-Taxable Costs, 91 MOTION to Amend/Correct/Modify 88 Judgment. By District Judge Gordon P Gallagher on 8/16/2023. Text Only Entry(schap,) (Entered: 08/16/2023)
08/16/2023	98	NOTICE of Entry of Appearance by Brian P. Kershaw on behalf of Allstate Fire and Casualty Insurance Company Attorney Brian P. Kershaw added to party Allstate Fire and Casualty Insurance Company(pty:dft) (Kershaw, Brian) (Entered: 08/16/2023)
08/17/2023	99	MOTION to Withdraw as Attorney of Record by Defendant Allstate Fire and Casualty Insurance Company. (Zouski, Justin) (Entered: 08/17/2023)
08/17/2023	100	MEMORANDUM regarding 99 MOTION to Withdraw as Attorney of Record filed by Allstate Fire and Casualty Insurance Company. Motion referred to Magistrate Judge Michael E. Hegarty, by District Judge Gordon P Gallagher on 8/17/2023. Text Only Entry (schap,) (Entered: 08/17/2023)
08/17/2023	101	ORDER granting 99 Motion to Withdraw as Attorney. Attorney Kurt Hans Henkel and Winslow Russell Taylor, III are hereby terminated as counsel of record and the Clerk of Court is directed to so indicate on the docket. Defendant continues to be represented by Justin H. Zouski and Brian Kershaw, of the lawfirm of Tucker Holmes, P.C. Entered by Magistrate Judge Michael E. Hegarty on 8/17/23. Text Only Entry(mehlc4,) (Entered: 08/17/2023)
08/29/2023	102	RESPONSE to 90 MOTION for Attorney Fees and Non-Taxable Costs filed by Defendant Allstate Fire and Casualty Insurance Company. (Attachments: # 1 Exhibit 1 Policy, # 2 Exhibit 2 Billing Statement, # 3 Exhibit 3 Invoices)(Kershaw, Brian) (Entered: 08/29/2023)
08/29/2023	103	RESPONSE to 91 MOTION to Amend/Correct/Modify 88 Judgment filed by Defendant Allstate Fire and Casualty Insurance Company. (Kershaw, Brian) (Entered: 08/29/2023)
09/11/2023	104	STATEMENT of Conferral by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 09/11/2023)
09/11/2023	105	REPLY to Response to 91 MOTION to Amend/Correct/Modify 88 Judgment filed by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 09/11/2023)
09/12/2023	106	REPLY to Response to 90 MOTION for Attorney Fees and Non-Taxable Costs filed by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 09/12/2023)
09/13/2023	107	Costs Taxed by Clerk in the amount of \$8,847.62 against Allstate Fire and Casualty Insurance Company and in favor of Plaintiff Yeager. Costs hearing held September 12, 2023, Courtroom C401 of the Rogers Courthouse at 9:00 a.m. MST Counsel for Plaintiff and Defendant present. (ashee) (Entered: 09/13/2023)
09/27/2023	108	Unopposed MOTION for Hearing/Conference On Attorneys' Fees and Costs by Defendant Allstate Fire and Casualty Insurance Company. (Kershaw, Brian) (Entered: 09/27/2023)
10/10/2023	109	Unopposed MOTION for Leave to Deposit Funds Into Court Registry by Defendant Allstate Fire and Casualty Insurance Company. (Kershaw, Brian) (Entered: 10/10/2023)
10/13/2023	110	ORDER RE UNOPPOSED MOTION FOR LEAVE TO DEPOSIT FUNDS INTO COURT REGISTRY (D. 109). The Court has reviewed Defendant Allstate Fire and Casualty Insurance Company's (Allstate) motion for leave to deposit funds with the Court. Before granting the requested relief, the Court asks that Allstate specify why payment into the Court registry--as opposed to other methods of disbursing the undisputed funds, e.g., a direct payment to Plaintiff Yeager--is warranted. To this end, the Court orders Allstate to file a brief supplement to its motion (not to exceed three pages) no later than October 20, 2023 . By District Judge Gordon P Gallagher on 10/13/2023. Text Only Entry. (jtorr,) (Entered: 10/13/2023)
10/31/2023	111	SATISFACTION OF JUDGMENT entered In favor of Jason D Yeager Against Allstate Fire and Casualty Insurance Company PARTIAL by Plaintiff Jason D Yeager. (Hotchkiss, Joshua)

		(Entered: 10/31/2023)
11/16/2023	112	ORDER denying 109 Motion to Deposit Funds. By District Judge Gordon P Gallagher on 11/16/2023.(schap,) (Entered: 11/16/2023)
12/01/2023	113	RESPONSE to Order to Submit Revised Fee Statement by Plaintiff Jason D Yeager. (Attachments: # 1 Exhibit Time Sheet)(Hotchkiss, Joshua) (Entered: 12/01/2023)
01/09/2024	114	ORDER. Plaintiff's 90 Motion for Attorney Fees and Non-Taxable Costs and Plaintiff's 91 Motion to Amend Final Judgment are GRANTED IN PART . Defendant's 108 Unopposed Motion Requesting Hearing on Attorneys' Fees and Costs is DENIED . By District Judge Gordon P Gallagher on 1/9/2024.(schap,) (Entered: 01/09/2024)
01/18/2024	115	NOTICE <i>Joint Calculation of Plaintiff's Pre-Judgement Interest On Non-Economic Damages</i> by Defendant Allstate Fire and Casualty Insurance Company (Kershaw, Brian) (Entered: 01/18/2024)
01/19/2024	116	ORDER to Amend Final Judgment 88 pursuant to the Court's 114 Order on Motion for Attorney Fees, Order on Motion to Amend and consistent with the 115 Notice filed by Allstate Fire and Casualty Insurance Company. by District Judge Gordon P Gallagher on 01/19/2024. (dclem) (Entered: 01/19/2024)
01/19/2024	117	AMENDED JUDGMENT in favor of Jason D Yeager and against Allstate Fire and Casualty Insurance Company Entered by the Clerk on 01/19/2024. (dclem) (Entered: 01/19/2024)
04/02/2024	118	SATISFACTION OF JUDGMENT re 117 Judgment entered In favor of Jason D Yeager Against Allstate Fire and Casualty Insurance Company by Plaintiff Jason D Yeager. (Hotchkiss, Joshua) (Entered: 04/02/2024)

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